

		<u>Motion to Be Relieved as Counsel of Record</u> Counsel Fortra Law through Jacoby Perez moves to be relieved as counsel of record for Defendant Tri Minh Doan ("Client"). For the following reasons, the motion is GRANTED. The court has reviewed the materials submitted by Moving Counsel and finds that counsel has complied with the requirements of Rule 3.1362. The clerk is ordered to update the proposed order to reflect the following changes: - Add appearances in Section 2 - In section 7(a), strike the information currently included and indicate the next scheduled hearing is set for: 07/09/2026 at 10:00 AM in Department C10, Central Justice Center, 700 W. Civic Center Dr., Santa Ana, CA 92701 - In section 7(b), modify the information currently included and indicate the hearing will also concern: Motion by Attorney John Anthony Thompson to Be Relieved as Counsel of Record The court's order shall become effective upon the filing of the proof of service of the signed order on the Client. Moving Counsel is ordered to give notice by non-electronic and electronic means to Client Tri Minh Doan and all other parties.
1:30 p.m.		
1	Okanina v. Hyundai Motor America	Defendant Hyundai Motor America's ("HMA") motion to compel arbitration and stay the action is DENIED. HMA's request for judicial notice is GRANTED. Plaintiff's Evidentiary Objections to Declarations of Jennah Feeley and Vijay Rao should be OVERRULED. [The moving party "is not required to authenticate an opposing party's signature on an arbitration agreement as a preliminary matter." (<i>Ruiz v. Moss Bros Auto Group, Inc.</i> (2014) 232 Cal.App.4th 836, 846.)] The right to arbitration depends upon contract, and thus, a motion to compel arbitration is akin to a suit in equity seeking specific performance of that contract. (See <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) The parties may, among other things, agree that the arbitration agreement will be controlled by the Federal Arbitration Act ("FAA"), which includes both procedural and substantive provisions. (See <i>Rodriguez v. American Technologies, Inc.</i> (2006) 136 Cal.App.4th 1110, 1122.) The Federal Arbitration Act governs here as the Warranty Arbitration Provision expressly provides that it "shall be governed by the Federal Arbitration Act, 9 U.S.C. §§ 1-16." (Feeley Decl., Exh. 2 [Warranty] at p. 14.) Accordingly, the FAA applies. The FAA states that written arbitration agreements "shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or